



EUROPEAN
COMMISSION

Brussels, 5.7.2021
COM(2021) 354 final

ANNEX

ANNEX

to the

Proposal for a COUNCIL DECISION

on the position to be adopted on behalf of the European Union, within the EEA Joint Committee concerning an amendment to Protocol 31 to the EEA Agreement, on cooperation in specific fields outside of the four freedoms

(Budget line 07 20 03 01 - Social Security)

ANNEX

DECISION OF THE EEA JOINT COMMITTEE

No [...]

of [...]

amending Protocol 31 to the EEA Agreement, on cooperation in specific fields outside the four freedoms

THE EEA JOINT COMMITTEE,

Having regard to the Agreement on the European Economic Area (“the EEA Agreement”), and in particular Articles 86 and 98 thereof,

Whereas:

- (1) It is appropriate to continue the cooperation of the Contracting Parties to the EEA Agreement in Union actions funded from the general budget of the Union regarding the free movement of workers, coordination of social security schemes and measures for migrants, including migrants from third countries.
- (2) It is appropriate that this cooperation should continue beyond 31 December 2020, irrespective of when this Decision is adopted or whether the fulfilment of constitutional requirements for this Decision, if any, is notified after 10 July 2021.
- (3) Entities established in the EFTA States should be entitled to participate in activities, which start before the entry into force of this Decision. The costs incurred for such activities, the implementation of which starts after 1 January 2021, may be considered eligible under the same conditions as those applicable to costs incurred by entities established in the EU Member States provided that this Decision enters into force before the end of the action concerned.
- (4) Protocol 31 to the EEA Agreement should therefore be amended in order to allow for that extended cooperation to take place from 1 January 2021,

HAS ADOPTED THIS DECISION:

Article 1

Article 5 of Protocol 31 to the EEA Agreement shall be amended as follows:

1. The following paragraph is inserted after paragraph 13:
 - ‘14. The EFTA States shall, as from 1 January 2021, participate in the actions funded from the following budget line, entered into the general budget of the European Union for the financial year 2021:
 - **Budget line 07 20 03 01:** “Free movement of workers, coordination of social security schemes and measures for migrants including migrants from third countries”.

The costs incurred for activities the implementation of which starts after 1 January 2021, may be considered eligible as from the beginning of the action under the grant

agreement or the grant decision concerned provided that Decision of the EEA Joint Committee No XX/2021 of [...] [This decision] enters into force before the end of the action.'

2. In paragraph 5, the words 'and in the actions funded from the budget line for the financial years 2014, 2015, 2016, 2017, 2018, 2019 and 2020 referred to in paragraph 13 as from 1 January 2014' are replaced by the words ', in the actions funded from the budget line for the financial years 2014, 2015, 2016, 2017, 2018, 2019, 2020, and 2021 referred to in paragraph 13 as from 1 January 2014 and in the actions funded from the budget line for the financial year 2021 referred to in paragraph 14 as from 1 January 2021'.
3. In paragraphs 6 and 7, the words 'paragraphs 8, 12 and 13' are replaced by the words 'paragraphs 8, 12, 13 and 14'.

Article 2

This Decision shall enter into force on the day following the last notification under Article 103(1) of the EEA Agreement*.

It shall apply from 1 January 2021.

Article 3

This Decision shall be published in the EEA Section of, and in the EEA Supplement to, the *Official Journal of the European Union*.

Done at Brussels, [...].

For the EEA Joint Committee

The President

[...]

The Secretaries

To the EEA Joint Committee

[...]

* [No constitutional requirements indicated.] [Constitutional requirements indicated.]